

25STCV29243 25STCV29243

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-13

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Case Number: 25STCV29243 Hearing Date: August 13, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Arthur Bender

;

Plaintiff,

vs.

LA Solar Group, Inc.

, et al.,

Defendants.

Case No.:

25STCV29243

Hearing Date:

August 13, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Motion

to ALLOW Interpleader of Funds and Discharge of Liability

MOVING PARTY: Defendant Contractors State License
Board

RESPONDING

PARTY: No response

Motion to Allow

Interpleader of Funds and Discharge of Liability

The court considered the moving
papers filed in connection with this motion. No opposition was filed.

DISCUSSION

Defendant

Contractors State License Board ("Defendant" or "CSLB") moves the court for an order granting interpleader of funds in the amount of \$50,000.00, discharging Defendant of liability, and dismissing Defendant from the action.

"Any person, firm, corporation, association or other entity against whom double or multiple claims are made, or may be made, by two or more persons which are such that they may give rise to double or multiple liability, may bring an action against the claimants to compel them to interplead and litigate their several claims." (Code Civ. Proc., § 386(b).) Once a party admits liability and deposits the money with the court, that party is discharged from liability and freed from the obligation of participating in the litigation between the claimants. (City of Morgan Hill v. Brown (1999) 71 Cal.App.4th 1114, 1122.)

The court finds
that interpleader of the disputed funds and dismissal of the moving Defendant
is proper. Defendant's sole involvement in the underlying dispute is through plaintiff
Arthur Bender ("Plaintiff")'s fourth cause of action for recovery of a
disciplinary cash deposit. (Complaint ¶¶ 72-73.) This cause of action alleges
that the contractor defendants in this action were ordered by Defendant CSLB to
obtain a disciplinary bond in connection with a license probation, and, in lieu
of obtaining that bond, the contractor defendants deposited \$50,000.00 with
Defendant CSLB. (Complaint ¶ 72.) In the event Plaintiff prevails on the
underlying claims, Plaintiff seeks to claim against the deposit. (Complaint ¶
73.) Defendant CSLB disclaims any interest in the action beyond holding the
cash deposit. (Edwards Decl. ¶¶ 5-9.) As this showing is sufficient to
demonstrate the application of the interpleader statute, the court grants
Defendant CSLB's motion.

ORDER

The court GRANTS
defendant Contractor State License Board's motion to interplead funds.

The court orders
that defendant Contractor State License Board deposit with the Clerk of the
Court defendant LA Solar Group, Inc.'s cash deposit in the amount of \$50,000.00.

The court orders
that defendant Contractor State License Board is discharged from further
liability to any party to this action relating to the deposited funds,
contingent on defendant Contractor State License Board filing proof of deposit.

The court orders
that, upon defendant Contractor State License Board's filing proof of deposit
of the disputed funds, defendant Contractor State License Board is dismissed
from this action with prejudice.

The court orders defendant
Contractor State License Board to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 13, 2026

Robert B. Broadbelt III

Judge of the Superior Court